

ing one inconvenience, fraud, or private mischief, which the statute of Hen. 8. meant to avoid" (a).

Alterations made in trusts as regards the trustee. — As to the changes that were successively introduced, it was held *with reference to the trustee*, that *actual confidence in the person* was no longer to be looked upon as essential. A body *corporate* therefore was not exempted from the writ of *subpœna* on the ground of incapacity (b): and even the *king*, notwithstanding his high prerogative, was invested with the character of a Royal Trustee (c), though the precise mode of enforcing the trust against him was not exactly ascertained: to use the language of Lord Northington, "the arms of equity were very short against the Prerogative" (d). The subtle distinctions which had formerly attended the notion of *privity of estate* were also gradually discarded. Thus it was laid down by Lord Hale, that tenant in *dower* should be bound by a trust as claiming in the *per* by the assignment of the heir (e); and so it was afterwards determined by Lord Nottingham (f): and when an old case to the contrary was cited by Lord Jeffries, it was unanimously declared both by the bench and the bar to be against equity and the constant practice of the Court (g). A tenant by *statute merchant* was held to be bound upon the same principle, for he took, it was said, by the act of the party, and the remedy which the law gave thereupon (h). But as to the tenant by the *curtesy*, Lord Hale gave his opinion, that one in the *post* should not be liable to a trust *without express mention made by the party who created it*; and therefore tenant by * the [*10] *curtesy* should not be bound (a): but his Lordship's authority on this point was subsequently over-ruled, and

(a) Burgess v. Wheate, 1 Ed. 223.

(b) See Green v. Rutherford, 1 Ves. 468; Attorney-General v. Whorwood, 1 Ves. 536.

(c) See Penn v. Lord Baltimore, 1 Ves. 453; Earl of Kildare v. Eustace, 1 Vern. 439.

(d) Burgess v. Wheate, 1 Ed. 256.

(e) Pawlett v. Attorney-General, Hard. 469.

(f) Noel v. Jevon, Freem. 43.

(g) MS. note by an old hand in the copy of Croke's Reports in Lincoln's Inn Library, Cro. Car. 191.

(h) Pawlett v. Attorney-General, Hard. 467, per Lord Hale.

(a) Pawlett v. Attorney-General, Hard. 469.